MOTION FOR PARTIAL REMOVAL - CLEAR THE DISMISSED COUNTS IN A CASE WHERE OTHER COUNTS STUCK

IN THE ..... COURT
(The county criminal, circuit or general sessions court having jurisdiction in the previous action - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:
.....

PARTIAL REMOVAL OF RECORDS OF CHARGES NOT RESULTING IN CONVICTION IN A MIXED CASE, T.C.A. Sec. 40-32-106(C)(2)

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under T.C.A. Sec. 40-32-106(c)(2); T.C.A. Sec. 40-32-106(a); T.C.A. Sec. 40-32-102(d); T.C.A. Sec. 40-32-110 and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

The controlling review identified this remedy from a secondary profile and left its citation unresolved as the highest-value Tennessee research item. It is resolved: Public Chapter 268 of 2025 created a partial database removal provision at T.C.A. Sec. 40-32-106(c)(2), and the TBI's own form BI-0334, revision 04/2025, is captioned Removal of Criminal Offender Record pursuant to T.C.A. Sec. 40-32-106(c)(2), which corroborates both the citation and the mechanism from an official source. The remedy answers the most common real-world Tennessee scenario after a clean dismissal: a multi-count case where some counts were dismissed as part of a plea and others produced a conviction. Whether the relief reaches paper records or only electronic databases was not established, and the review flags that limitation as materially changing what a participant gets.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - originating court] Which court handled the case, and in which county? A separate filing is needed in each county where you have a case.
.....
.....

[C2 - docket number] What is the docket or case number?
.....
.....

[C3 - offence and disposition] What was the charge, and exactly how did the case end?
.....
.....

[C4 - disposition date] On what date did the case end?
.....
.....

[C5 - state control number] What is the state control number on your TBI criminal history? The expunction order cannot be completed without it.
.....
.....

[C6 - other convictions] List every other conviction you have anywhere, including federal and out-of-state.
.....
.....

[C7 - citizenship or clearance] Are you asking about this because of immigration, federal employment or a security clearance? Tennessee expunction does not reach federal records.
.....
.....

[C8 - count by count disposition] Take the case count by count: what was each charge, and how did each one end? This route only reaches the counts that did not end in conviction.
.....
.....

[C9 - convicted counts] Which counts ended in a conviction? Those stay on your record.
.....
.....

[C10 - understands partial] This clears the dismissed counts and leaves the conviction. Is that what you are looking for?
.....
.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under T.C.A. Sec. 40-32-106(c)(2); T.C.A. Sec. 40-32-106(a); T.C.A. Sec. 40-32-102(d); T.C.A. Sec. 40-32-110.

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

COUNT-BY-COUNT SCHEDULE - CLEAR THE DISMISSED COUNTS IN A CASE WHERE OTHER COUNTS STUCK

IN THE ..... COURT
(The county criminal, circuit or general sessions court having jurisdiction in the previous action)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:
.....

COUNT-BY-COUNT SCHEDULE

One block for each charge in the case. Copy the wording from the court record itself, never from memory. Leave the blocks you do not need empty.

FIRST CHARGE

Offence as the record words it:
.....

Statute section:
.....

What happened to this charge, and on what date:
.....

Is this charge one you are asking to have removed? Write yes or no:
.....

SECOND CHARGE

Offence as the record words it:
.....

Statute section:
.....

What happened to this charge, and on what date:
.....

Is this charge one you are asking to have removed? Write yes or no:
.....

THIRD CHARGE

Offence as the record words it:
.....

Statute section:
.....

What happened to this charge, and on what date:
.....

Is this charge one you are asking to have removed? Write yes or no:
.....

FOURTH CHARGE

Offence as the record words it:
.....

Statute section:
.....

What happened to this charge, and on what date:
.....

Is this charge one you are asking to have removed? Write yes or no:
.....

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this schedule personally.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
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SCOPE DISCLOSURE - CLEAR THE DISMISSED COUNTS IN A CASE WHERE OTHER COUNTS STUCK

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS COMPONENT COVERS

This is the scope disclosure component prescribed by the committed route contract.

ROUTE AND SCOPE DIRECTIONS

- Expunction is not automatic. A dismissed charge or a completed diversion stays on background checks until a petition is filed. This is the most common Tennessee misunderstanding and the packet leads with it.
- No reach to federal records; a diversion guilty plea may remain visible on clearance checks.
- This is partial removal, not expunction of the case. The counts that produced the conviction are untouched, and on the current record the relief is established for electronic databases with paper coverage unconfirmed.
- Any dispute with the district attorney general about eligibility, or any indication the office will oppose.
- Any other conviction anywhere on the record, including federal and out-of-state convictions that would be ineligible in Tennessee.
- Unpaid court costs, fines or restitution, which mean the sentence is not complete.
- Any DUI, sexual offence or registration matter.
- Any domestic violence or child-victim offence.
- Federal, military, tribal or out-of-state records, which Tennessee expunction does not reach.
- Immigration consequences, and any security-clearance question.
- Any question that turns on whether the county clerk uses the pre-2025 or the reorganized section numbering.
- The participant expects the whole case cleared. This remedy leaves the conviction in place.
- The count-by-count dispositions cannot be established from the clerk's record.
- The participant needs the paper file cleared and not only the electronic databases, which is the limitation that was not resolved.

FILING AND AFTER ORDER INSTRUCTIONS - CLEAR THE DISMISSED COUNTS IN A CASE WHERE OTHER COUNTS STUCK

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Partial removal of records of charges not resulting in conviction in a mixed case, T.C.A. Sec. 40-32-106(c)(2).

The controlling review identified this remedy from a secondary profile and left its citation unresolved as the highest-value Tennessee research item. It is resolved: Public Chapter 268 of 2025 created a partial database removal provision at T.C.A. Sec. 40-32-106(c)(2), and the TBI's own form BI-0334, revision 04/2025, is captioned Removal of Criminal Offender Record pursuant to T.C.A. Sec. 40-32-106(c)(2), which corroborates both the citation and the mechanism from an official source. The remedy answers the most common real-world Tennessee scenario after a clean dismissal: a multi-count case where some counts were dismissed as part of a plea and others produced a conviction. Whether the relief reaches paper records or only electronic databases was not established, and the review flags that limitation as materially changing what a participant gets.

WHERE IT GOES

The county criminal, circuit or general sessions court having jurisdiction in the previous action
Confirmed on 2026-08-06 by direct inspection of both Tennessee AOC form indices: the self-help forms page publishes only divorce and order-of-protection forms, and the full forms-and-publications inventory covers appellate, divorce, general sessions civil, mediation, non-IV-D child support, order of protection, parenting plan and trial court forms, plus licensing forms. No expunction form appears in either. This is a negative finding established by inspection of the authoritative index, not by failure to search.
Venue: Statewide statute with originating-court venue. The petition goes to the court having jurisdiction in the previous action - the county criminal, circuit or general sessions court where the case originated. A person with cases in several counties files separately in each. There is no statewide participant form, so what varies locally is the clerk's own paperwork: the AOC directs filers to check with the court clerk because separate forms may be required for multiple charges.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: Not established for the partial removal itself. The Sec. 40-32-106(a) no-cost provision is framed around removal and destruction of the public records of a person who has been charged, and whether it reaches a (c)(2) partial removal in a mixed case was not confirmed. No figure is quoted. Fee waiver as recorded: Not established for this route.

WHO MUST BE SERVED

Service as recorded: Through the clerk. The participant does not effect service. Notice as recorded: The clerk serves the motion on the district attorney general in the ordinary course.

WHAT THE RECORD SAYS YOU MUST KNOW

- Confirm the statutory citation with the county clerk or district attorney general before every filing. Chapter 32 was reorganized by Public Chapter 268 of 2025, effective 2025-04-24, and codified by Public Chapter 608, the 2026 Code Bill, effective 2026-03-25. Clerks and published guidance may still use the pre-reorganization numbering: the Tennessee AOC's own expunction page is titled to say updated information is coming to reflect changes to T.C.A. Sec. 40-32-101 and still reasons from that section, which since 2025-04-24 has been nothing but a definitions section. A generated petition citing the wrong section is a rejection risk either way, so the packet is built to carry the current citation with the superseded one noted, and instructs the participant to confirm before filing.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- Any dispute with the district attorney general about eligibility, or any indication the office will oppose.
- Any other conviction anywhere on the record, including federal and out-of-state convictions that would be ineligible in Tennessee.
- Unpaid court costs, fines or restitution, which mean the sentence is not complete.
- Any DUI, sexual offence or registration matter.
- Any domestic violence or child-victim offence.
- Federal, military, tribal or out-of-state records, which Tennessee expunction does not reach.
- Immigration consequences, and any security-clearance question.
- Any question that turns on whether the county clerk uses the pre-2025 or the reorganized section numbering.
- The participant expects the whole case cleared. This remedy leaves the conviction in place.
- The count-by-count dispositions cannot be established from the clerk's record.
- The participant needs the paper file cleared and not only the electronic databases, which is the limitation that was not resolved.

THE PAGES IN THIS SET

- tn_redaction-motion-for-partial-removal-1: the composed motion asking for removal of part of the record only (Clear the dismissed counts in a case where other counts stuck)
- tn_redaction-count-by-count-schedule-2: the charge-by-charge schedule the motion refers to (Clear the dismissed counts in a case where other counts stuck)